

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16, Honorable Roberta S. Hayashi, Presiding

Courtroom Clerk:

191 North First Street, San Jose, CA 95113

Telephone: 408.882.2270

Department16@scscourt.org

LAW AND MOTION TENTATIVE RULINGS

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

DATE: WEDNESDAY, JUNE 11, 2025

TIME: 9:00 A.M.

Please Read Carefully As Some of Our Protocols Have Changed.

All Courts of California celebrate the diversity of the attorneys and the litigants who appear in our Courts. Do not hesitate to correct the Court or Court Staff concerning the pronunciation of any name or how anyone prefers to be addressed, or referred to. All persons should spell their names for the benefit of Court Staff.

Appearances.

Personal appearances in the courtroom are strongly encouraged. If you must appear remotely, you must use the MS Teams link from a device with a camera. Please "name" yourself when you log in, as: **Line #/name/party**. Remote appearances should be made from a quiet location with no background noise (and not from a moving vehicle). IT IS ABSOLUTELY NECESSARY FOR ALL INDIVIDUALS TO SPEAK SLOWLY, AND NOT TO INTERRUPT WHEN SOMEONE ELSE IS SPEAKING.

Please notify this Court immediately if the matter will not be heard on the scheduled date. **California Rules of Court**, rule 3.1304(b). If a party fails to appear at a law and motion hearing without having given notice, this Court may take the matter off calendar, to be reset only upon motion, or may rule on the matter. **California Rules of Court**, rule 3.1304(d).

This Court expects all counsel and litigants to comply with the Tentative Rulings Procedures that are outlined in Local Civil Rule 7(E) and **California Rules of Court**, rule 3.1308. If the Court has not directed argument, oral argument must be permitted only if a party notifies all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear. A party must notify all other parties by telephone or in person. A failure to timely notify this Court and/or the opposing parties may result in the tentative ruling being the final order in the matter.

A party may give notice that he or she will not appear at a law and motion hearing and submit the matter without an appearance unless this Court orders otherwise. This Court will rule on the motion as if the party had appeared. **California Rules of Court**, rule 3.1304(c).

Court Reporters.

This Court does not appoint Court Reporters in civil actions except in limited circumstances. If you wish to arrange for a private court reporter, please use Local Form #CV-5100.

No electronic recordings, video, still photography or audio capture of this live stream is allowed without the expressed, written permission of the Superior Court of California, County of Santa Clara. Use of the Court's Electronic Recording (ER) system is limited to proceedings permitted by statute or General Order of the Court. State and Local Court rules prohibit photographing or recording of court proceedings whether in the courtroom or while listening on the Public Access Line or other virtual platform, without a Court Order. See Local General Rule 2(A) and 2(B); **California Rules of Court**, rule 1.150.

Orders After Hearing

The Court will prepare the Final Order unless stated otherwise below or at the hearing. Counsel are to comply with **California Rules of Court**, rule 3.1312.

TROUBLESHOOTING TENTATIVE RULINGS

If you see last week's tentative rulings, you have checked prior to the posting of the current week's tentative rulings. You will need to either "REFRESH" or "QUIT" your browser and reopen it. If you fail to do either of these, your browser may pull up old information from old cookies even after the tentative rulings have been posted.

Tentative Rulings Are Continued Below. Full Orders Are On The Following Pages.

LINE #	CASE #	CASE TITLE	RULING
--------	--------	------------	--------

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV371434	CBS FINANCE INC vs STEPHEN COOPER et al	Order of Examination of Judgment Debtor Stephen Cooper; No Tentative Ruling.
LINE 2	22CV404795	Masaki Kobayashi vs General Motors LLC	Defendant's Motion to strike punitive damages (paragraph d in Prayer for Relief of First Amended Complaint) is DENIED. See Consolidated Tentative Ruling below for details. Court to prepare Order.
LINE 3	22CV404795	Masaki Kobayashi vs General Motors LLC	Defendant's Demurrer to the fifth cause of action of the First Amended Complaint is OVERRULED. See Consolidated Tentative Ruling under Line 2 below for details. Court to prepare Order.
LINE 4	24CV449928	HAMID JARIBEAN et al vs ALOK SONTHALIA	Defendant's demurrer to the sixth cause of action of Plaintiff's complaint for (foreclosure of mechanics lien) based on the untimeliness of the lien, is SUSTAINED WITHOUT LEAVE TO AMEND. As alleged on the face of the Complaint and the Mechanic's Lien attached to the Complaint, the Lien was recorded well past the 90-day statute of limitations for recording such a lien following the completion of the work. No opposition was filed to the demurrer. Pursuant to CRC 8.54, lack of opposition may be considered consent to the motion. Counsel are ordered to meet and confer regarding removal of the mechanics lien. If a petition for removal of the mechanics lien under Civil Code sections 8480-8488 is necessary, defendant may request and the Court will advance it so that it may be heard within 60-90 days after the petition is filed. Moving Party to prepare the order.
LINE 5	20CV369513	Stephanie Chapa vs Howard Frank (Trial Date 7/14/2025)	Defendant's Motion for Summary Judgment/Summary Adjudication is GRANTED. See Tentative Ruling below for details. Plaintiff did not file a Memorandum of Points and Authorities in Opposition to Defendant's Motions. Court to prepare Order.

LINE #	CASE #	CASE TITLE	RULING
LINE 6	21CV389845	MOGA LOGISTICS INC vs ALLISON TRANSMISSION, INC. et al (Trial Date 10/27/2025)	Hearing on Defendant Pacific Power Group’s Motion for Good Faith Settlement (filed 12/27/2024 after mediation in which all Parties participated) is continued for service on non-settling Defendants M&J Transportation and John Murray. Mediation occurred in September 2024 and all parties were present. Dismissals of the three settling Defendants, filed in December would not cut off claims for indemnity or the filing of cross-complaints as there is no final judgment in the action. Thus, Moving Party has stated grounds for this motion. However, all Parties should have been served. In addition, now that opposition has been filed, the Court will continue hearing so that the Court can consider (in camera) the terms of the settlement and receive further briefing from any party as to why Settling Defendant could become subject to why the settlement as negotiated at a mediation at which all parties were present, was not reached in good faith. Parties are ordered to meet and confer re briefing schedule and moving party to appear for setting of a continued hearing date.

LINE #	CASE #	CASE TITLE	RULING
LINE 7	24CV445394	Toyota Motor North America Inc. et al vs Prashant Tiwari	Having reviewed the Final Arbitration Award and Orders on Summary Judgment, and the arguments of the Parties, Petitioner's Motion to Confirm the Arbitration Award issued by Judge Robert Baines (ret.) dated 7/2/2024 is GRANTED. Claimant/Respondent's request to set aside the Arbitration Award is DENIED. Claimant/Respondent initiated the arbitration process, he framed the claims that he was asserting that should be heard by the arbitrator. He participated in the arbitration process voluntarily -- and never disavowed it until he received the Arbitrator's Award in favor of Petitioner. An agreement to arbitrate a dispute can be made at any time -- even after termination of employment, a dispute arisen, or a lawsuit filed. The Court finds that the Arbitration Award was the result of an arbitration process that complies with the law, and shall be confirmed as grounds to vacate the award are not proven. Claimant/Respondent's Petition to Vacate or his opposition to the Petition to confirm the award are not an opportunity to have another judicial officer reweigh the evidence, or to introduce new evidence. Claimant/Respondent has failed to meet his burden of proving grounds to vacate the award. The Court finds there was neither 1) refusal to hear material evidence -- evidence of time-barred claims can be excluded, evidence that relates to claims that have been eliminated by rulings on Motion for Summary Judgment, or evidentiary orders may be excluded; 2) actions by the Arbitrator in excess of his powers by determining issues outside the scope of claims brought before him, or by acting outside the law; 3) misconduct; or 4) award procured through undue means or fraud. Counsel for Petitioner Toyota Motor North America, Inc. to prepare the order.

LINE #	CASE #	CASE TITLE	RULING
LINE 8	25CV462295	City of San Jose vs Jose Lomeli et al	Plaintiff's Application for Preliminary Injunction against Defendant Shelby McSwain is GRANTED for a period of two years, ending June 11, 2027, on the same terms as the Preliminary Injunction issued as to the other Defendants. It appears that Defendant McSwain was served with the TRO/OSC on May 5, 2025, had notice of the Hearing on June 11, 2025 and has failed to file opposition. Counsel for Plaintiff to appear to address any request for reissuance of the TRO and continued hearing as to Defendants Cullotta and Harris.
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			
LINE 14			
LINE 15			
LINE 16			
LINE 17			
LINE 18			
LINE 19			
LINE 20			

Calendar Line 1

- oo0oo -

Calendar Line 2

Consolidated Tentative Ruling Calendar Lines 2-3

Case Name: *Kobayashi v. General Motors, LLC*

Case No.: 22CV404795

This is a lemon law case. According to the allegations of the first amended complaint (“FAC”), on March 14, 2021, plaintiff Masaki Kobayashi (“Plaintiff”) entered into a warranty contract with defendant General Motors, LLC (“Defendant” or “GM”) for a 2021 Chevrolet Bolt EV (“subject vehicle”), which contained a bumper-to-bumper warranty, a powertrain warranty and an emissions warranty. (See FAC, ¶¶ 6-7, exh. A.) Prior to leasing the vehicle, Plaintiff interacted with sales representatives and considered GM’s advertisement and other marketing materials concerning the subject vehicle. (See FAC, ¶ 34.) Plaintiff alleges that GM knew since 2016 that the model year 2017 or newer Chevrolet Bolt EV vehicles—including the subject vehicle—contained design and manufacturing defects in the battery that causes the high voltage battery to overheat when charged to full capacity, resulting in loss of propulsion power while driving, catastrophic fire, no crank, reduced range, thermal runaway and spontaneous combustion (“Battery Defect”). (See FAC, ¶¶ 21-22, 28-30.) While GM knew about the Battery Defect and the potential exposure of its consumers to serious risk of accident and injury, it concealed the existence and nature of the defect of the subject vehicle from Plaintiff prior to and during the time of the lease, omitting reference of the Battery Defect from its sales materials, advertisements, publications, and marketing materials, having GM’s dealers inform consumers such as Plaintiff that their vehicle was performing properly and having GM’s dealers conduct repairs that masked the defect. (See FAC, ¶¶ 21-32.) After receiving numerous customer complaints and warranty claims, and investigations confirming the Battery Defect, on July 14, 2021, GM instructed owners to “park their vehicles outside away from homes and other structures immediately after charging and... not leave their vehicles charging overnight” and recalled vehicles to update the software so that vehicles would limit the full charge to only 90% of the vehicle’s capacity, resulting in a decrease of total range for the vehicles. (See FAC, ¶¶ 36-37.)

On November 15, 2021, with approximately 5,634 miles on the odometer, Plaintiff presented the subject vehicle to GM’s authorized repair facility for various concerns including engine and high-voltage battery concerns, and the repair facility performed warranty repairs, representing that the vehicle was repaired. (See FAC, ¶ 41.) On June 6, 2022, with approximately 59,999 miles on the odometer, Plaintiff presented the subject vehicle to GM’s authorized repair facility for various concerns including engine, high-voltage battery and cooling system concerns, and the repair facility performed warranty repairs, representing that the vehicle was repaired. (See FAC, ¶ 42.) Throughout the entire term of his lease, Plaintiff experienced: warning messages that propulsion power was reduced and the vehicle would not charge; intermittent no start; repeated check engine light coming on; and, the A/C not blowing cold air. (See FAC, ¶ 43.)

On November 1, 2024, Plaintiff filed the FAC against GM, asserting causes of action for:

- 1) violation of Civil Code section 1793.2, subdivisions (a)(2) and (d);
- 2) violation of Civil Code section 1793.2, subdivision (b);

- 3) violation of Civil Code section 1793.2, subdivision (a)(3);
- 4) breach if the implied warranty of merchantability; and,
- 5) fraudulent inducement/concealment.

GM demurs to the fifth cause of action of the FAC for fraudulent inducement/ concealment and moves to strike paragraph d from the prayer seeking punitive damages.

I. GM'S DEMURRER TO THE FIFTH CAUSE OF ACTION

GM demurs to the fifth cause of action for fraudulent inducement/concealment arguing that it: fails to allege facts with sufficient particularity; fails to allege a transactional relationship giving rise to a duty to disclose; and is barred by the economic loss rule. For the reasons set forth below, GM's demurrer is DENIED.

Transactional relationship

In support of its argument that there is no transactional relationship with Plaintiff, GM cites to *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276,¹ in which the court stated that "[i]n transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Bigler-Engler, supra*, 7 Cal.App.5th at p.311; see also Def.'s memorandum of points and authorities in support of demurrer ("Def.'s demurrer memo"), pp.9:15-25, 10:1-25, 11:1-3.) "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (*Bigler-Engler, supra*, 7 Cal.App.5th at p.312.) GM argues that "[t]he First Amended Complaint does not allege that Plaintiff purchased the Subject Vehicle directly from GM... [t]hus, any alleged concealment by GM did not arise in a direct transaction between Plaintiff and GM... [and] under California law, there could not have been any actionable concealment by GM that allegedly induced Plaintiff's purchase of the vehicle." (GM's demurrer memo, p.8:22-27.)

GM's argument regarding a transactional relationship is clearly without merit. The FAC plainly alleges that "Plaintiff entered into a warranty contract with Defendant GM regarding a 2021 Chevrolet Bolt EV..." (FAC, ¶ 6.) This alleges a direct dealing between the parties.

Requisite particularity

GM also argues that the fifth cause of action fails to allege facts with sufficient particularity. (See Def.'s demurrer memo, pp. 8:1-28, 9:1-14.) As GM notes, a cause of action for concealment is required to be pled with specificity. (See *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878 (stating that "[c]oncealment is a

¹ While the Court appreciates that a Table of Authorities was provided, it would have been helpful if the pages in the Memorandum of Points and Authorities had been correctly paginated so that the pages on which cases are discussed are correctly identified in the Table.

species of fraud, and ‘[f]raud must be pleaded with specificity’”). “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

GM argues that “Plaintiff fails to plead, among other things, the specific ‘facts’ that GM allegedly failed to disclose; allegations establishing that GM knew of those ‘facts’ at the time Plaintiff purchased his vehicle; what advertisements, brochures, or other materials where GM could have disclosed the allegedly omitted ‘facts’ that Plaintiff reviewed and relied upon in purchasing the Subject Vehicle; how long prior to purchasing the vehicle he viewed them; and whether those materials, if any, were prepared by GM or someone else (such as a dealership)... [and] facts supporting any allegation that GM intended to defraud him by either making affirmative statements or failing to disclose material facts.” (Def.’s demurrer memo, pp.6:19-28, 7:1-5.)

However, the FAC alleges that: GM knew since 2016 that Chevy Bolts including the subject vehicle had a defect that caused the battery to overheat such that it could result in loss of power while driving, catastrophic fire, thermal runaway, reduced range and spontaneous combustion (see FAC, ¶¶ 21, 24-30, 37, 72-74); thereby exposing consumers like Plaintiff to a serious risk of accident injury (see FAC, ¶¶ 23, 73), but that GM actively concealed those facts from Plaintiff before and at the time of his lease (see FAC, ¶¶ 31, 47-48, 74-76, 78) despite a duty to disclose those facts to Plaintiff (see FAC, ¶¶ 35, 77, 78); Plaintiff would have not leased the subject vehicle had he known about the battery defect (see FAC, ¶¶ 74, 79-80); and, Plaintiff suffered damages by spending money leasing a vehicle that he would not have otherwise leased had he known about the defect and by being exposed to the risk of liability, accident and injury upon himself and others (see FAC, ¶ 81). Here, the FAC alleges all of the elements under *Rattagan, supra*. As to GM’s argument regarding the advertisements, brochures and other materials in which GM failed to disclose the facts regarding the defect, GM does not cite to any authority requiring such a level of particularity. Regardless, the FAC alleges that it was GM’s “sales materials, advertisements, publications, online marketing, television, radio and other marketing campaigns.” (FAC, ¶ 33.) GM’s arguments that further particularity is required, are not persuasive.

Economic loss rule

Lastly, GM argues that the cause of action is barred by the economic loss rule, citing *Rattagan, supra*. In *Rattagan*, the California Supreme Court stated that “California law has generally not treated fraud claims differently based on whether they allege affirmative deception or concealment... [t]hus, we see no principled reason to treat fraudulent concealment claims in the performance of a contract any differently from those based on affirmative misrepresentations, so long as a plaintiff can establish all the required elements of the cause of action independently of the parties’ contractual rights and obligations and can demonstrate an exposure to risks of harm beyond those that would be reasonably expected as the result of a contractual breach.” (*Rattagan, supra*, 17 Cal.5th at pp.20-21, 39 (also stating that “[a] plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is

independent of the duties and rights assumed by the parties when they entered the contract... [s]econd, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed”).)

GM asserts that “[t]he potential for battery defects is explicitly governed by the warranty GM provided for Plaintiff’s vehicle,” and that “Plaintiff’s alleged injury... was within the contemplation of the parties at the time they entered into the sales contract, as evidenced by the warranty from GM.” The Court disagrees. While the warranty provides for *repairs* due to defects, it does not contemplate injuries or deaths due to catastrophic fire or spontaneous combustion. There is nothing in the warranty with regard to such injuries. Moreover, in its “What Is Not Covered” section, it expressly states that “The New Vehicle Limited Warranty does not cover damage caused as the result of... fire... [or] explosion....” (FAC, exh. A, p.9.) GM’s argument regarding the economic loss rule is without merit.

GM’s demurrer to the fifth cause of action is **OVERRULED**.

II. GM’S MOTION TO STRIKE PORTIONS OF THE FAC

GM also moves to strike paragraph d from the prayer seeking punitive damages, arguing that the FAC fails to allege sufficient facts to support punitive damages and that the cause of action for fraudulent inducement/concealment fails to state facts sufficient to constitute a cause of action and therefore cannot support punitive damages.

Citing no specific paragraph of the FAC, GM argues that “[t]he only thing Plaintiff states is that prior to acquiring the vehicle, GM knew, ***or should have known***, that the Subject Vehicle’s lithium-ion battery was defective and failed to disclose those defects at the time Plaintiff bought it.” (Def.’s memorandum of points and authorities in support of motion to strike (“Def.’s strike memo”), p.4:23-26, citing “generally FAC.”) GM argues that “Plaintiff fails to allege what specific representation(s), if any, were made about the Subject Vehicle and its lithium-ion battery, and whether the person making those representation(s), if any, was an agent of GM.” (*Id.* at pp.4:26-28, 5:19-21 (also stating that “Plaintiff has not sufficiently pled, and indeed cannot do so, that GM engaged in fraudulent conduct to sustain an award of punitive damages”).) “Essentially, Plaintiff omitted the who what, when, and where allegations necessary to plead fraud.” (*Id.* at p.5:1-3.) However, GM misunderstands that the statement of the rule upon which it relies regarding the particularity of fraud allegations, “is intended to apply to affirmative misrepresentations... [and] is harder to apply this rule to a case of simple nondisclosure.” (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384 (stating as to the particularity requirement regarding showing “how, when, where, to whom and by what means the representations were tendered”).) As stated above with respect to GM’s demurrer, the fifth cause of action alleges facts supporting a fraudulent inducement/concealment cause of action with sufficient particularity.

GM also argues that, to justify the award of punitive damages, Plaintiff must allege facts demonstrating wrongfulness, and that there are no specific allegations showing that GM knew of the defect and knowingly concealed it. (See Def.’s strike memo, p.5:4-11.) However, the fifth cause of action of the FAC alleges that:

GM knew since 2016 that the model year 2017 or newer Chevrolet Bolt EV vehicles, including 2021 Chevrolet Bolt vehicles such as the Subject Vehicle... contained one or more design and/or manufacturing defects in the battery (i.e., the 'Battery Defect') that causes the high voltage battery to overheat when charged to full capacity and results in overheating when charged to full capacity or near to full capacity, losses of propulsion power while driving, catastrophic fire, no crank, reduced range, thermal runaway and/or spontaneous combustion... putting the battery at risk of catching fire or exploding... [t]his can result in catastrophic damage to these vehicles and the surrounding property or persons... it can suddenly and unexpectedly cause overhea[t]ing and spontaneous combustion at any time... thereby expos[ing] Plaintiff and his passengers (along with other drivers who share the road or garage with Plaintiff) to a serious risk of accident and injury... GM was well aware and knew that the lithium-ion battery installed on the Subject Vehicle was defective but failed to disclose this fact to Plaintiff at the time of sale and thereafter... [s]pecifically, GM knew (or should have known) that Chevy Vehicles had the Battery Defect... GM acquired its knowledge of the Battery Defect in 2016, prior to Plaintiff acquiring the Subject Vehicle, through sources not available to consumers such as Plaintiff, including (but not limited to) pre-production and post-production testing data; early consumer complaints about the Battery Defect made directly to GM and its network of dealers; aggregate warranty data compiled from GM's network of dealers; testing conducted by GM in response to these complaints; as well as warranty repair and part replacements data received by GM from GM's network of dealers, among other sources of internal information....[s]ince 2016, GM has made several communications to the National Highway Traffic Safety Administration (NHTSA) relating to the 'battery' components in Chevrolet Bolt EV vehicles... GM had superior and exclusive knowledge of the Battery Defect and knew or should have known that the defect was not known to or reasonably discoverable by Plaintiff before he leased or leased the Subject Vehicle... [w]hile it had been fully aware of the Battery Defect, GM actively concealed the existence and nature of the alleged defect from Plaintiff prior to, and at the time of lease... [GM] persisted in concealing the defect and its ability to fix it during repair, and thereafter... GM omitted mention of the Battery Defect in its sales materials, advertisements, online marketing, television, radio, and other marketing campaigns for Chevy Vehicles... [t]o make matters worse, and prevent consumers from discovering their wrongdoing, GM also concealed the existence, nature, extent, and scope of the Defect with ineffective repair procedures published directly to its dealerships and not consumers, such as Plaintiff... GM knew the Chevy Vehicles were dangerous... [o]n July 15, 2021, even for those vehicles that had the Recall performed, GM instructed owners and lessees of these Chevy Vehicles to 'park their vehicles outside away from homes and other structures immediately after charging and... not leave their vehicles charging overnight... [d]espite the software update remedy, Chevy Volt vehicles still continued to catch on catastrophic fire and cause serious harm to people and property... [t]he problem was not resolved, and the Bolt vehicles remained unsafe and serious safety hazards... GM was well aware and knew that the lithium-ion battery installed on the Vehicle was defective but failed to disclose this fact to plaintiff at the time of sale and thereafter... [s]]pecifically, GM knew that the lithium-ion

battery had one or more defects that can result in... the battery system overheating when charged to full capacity or near full capacity, losses of propulsion power while driving, catastrophic fire, no crank, reduced range, thermal runaway, and/or spontaneous combustion... [that t]hese conditions present a safety hazard and are unreasonably dangerous to consumers because they can suddenly and unexpectedly cause overheating and spontaneous combustion at any time... thereby expos[ing] Plaintiff and his passengers (along with other drivers who share the road or garage with Plaintiff) to a serious risk of accident and injury... while Defendant knew about the Battery Defect, and its safety risks since 2016, if not before, GM and its directors, officers, employees, affiliates, and/or agents nevertheless concealed and failed to disclose the defective nature of the Vehicle, its lithium-ion battery to Plaintiff prior to and at the time of sale... prior to the lease of Subject Vehicle to Plaintiff, [GM] knew that the Vehicle and its lithium-ion battery suffered from an inherent defect, was defective, would fail prematurely, and was not suitable for its intended use.

Thus, contrary to GM's assertion, the FAC unambiguously alleges that GM *knew* that the subject vehicle's lithium-ion battery was defective and actively concealed those facts from Plaintiff and other consumers. These allegations support an award of punitive damages. GM's motion to strike paragraph d from the prayer of the FAC is DENIED.

The Court will prepare the Order.

- 00000 -

Calendar Line 3

- 00000 -

Calendar Line 4

- 00000 -

Calendar Line 5

**20CV369513 *Stephanie Chapa v. Howard Frank*
Defendant Howard Frank's Motion for Summary Judgment or in the alternative Motion for Summary Adjudication is GRANTED.**

Factual Background.

This is an action for legal malpractice. The allegations of the first amended complaint ("FAC") are as follows:

In 2014, Lorraine Korpontinos (“Lorraine”) amended the Lorraine A. Korpontinos Survivor’s Trust (“Survivor’s Trust”) by limiting the beneficial interest of her son, Andrew Korpontinos (“Andrew”) and providing for certain beneficial interests for plaintiff Stephanie Chapa (“Plaintiff”) and Plaintiff’s children. (See FAC at ¶ 10.) In response, 267 Bypass Properties, Inc. filed an action to have a conservator appointed over Lorraine. (See FAC at ¶ 11.) Plaintiff retained defendant Howard G. Frank dba The Law Offices of Howard G. Frank (“Defendant”) to represent her as a beneficiary of the Korpontinos 1988 Revocable Trust Agreement (“Trust”) and the subtrusts— the Lorraine A. Korpontinos Survivor’s Trust, the Lorraine A. Korpontinos Marital Trust (“Marital Trust”) and the George Korpontinos Family Trust (“Family Trust”)—and to represent Plaintiff in the actions related to Andrew’s request to appoint a conservator over Lorraine, including case numbers 2014-1-PR-174368 and 2014-1-PR-175611. (See FAC at ¶¶ 8, 12.)

Plaintiff alleges that she retained Defendant in reliance on his express assurances that he could and would represent Plaintiff and protect her interest in the Trust. (See FAC at ¶ 13). John Kessler (“Kessler”) was appointed as Trustee of the Trust and its subtrusts. (See FAC at ¶ 14.) Plaintiff alleges that Defendant failed to disclose to her that Defendant had previously served as Kessler’s legal counsel, and had an existing professional relationship with Kessler, sharing office space with him for several years (*Id.*) Despite Plaintiff’s requests to take all necessary actions to protect her interests in accordance with her parents’ wishes with respect to the Marital Trust and the Family Trust and her mother’s wishes with respect to the Survivor’s Trust, and her requests that Defendant demand certain financing records relating to the Trust, Defendant failed or refused to take any such actions. (See FAC at ¶¶ 15-16.) Defendant specifically failed to file a necessary objection to prevent an amendment by the appointed conservator under Kessler’s guidance, resulting in Plaintiff’s children being removed as beneficiaries of the Survivor’s Trust, and now equally dividing the assets between Plaintiff and Andrew, contrary to Lorraine’s desires. (See FAC at ¶ 17.) When Plaintiff questioned Defendant as to why he did not protect Plaintiff’s interests, he responded, “that ship has sailed” and that there was nothing that could have been done. (See FAC at ¶ 18.)

Under Kessler’s guidance and in concert with the appointed conservator, the Korpontinos 2016 Irrevocable Trust (“Irrevocable Trust”) was established in 2016 and, unlike the other trust instruments that provided for direct distributions to Plaintiff, named Plaintiff as only an “income beneficiary” of the Irrevocable Trust, providing for distributions subject to Kessler’s discretion as trustee. (See FAC at ¶ 19.) Again, Defendant failed to take any action to protect Plaintiff’s interest in the Trust and instead allowed Kessler to significantly alter Lorraine’s estate plan to Plaintiff’s detriment, and failed to timely demand financing records related to Trust and the subtrusts. (See FAC at ¶¶ 20-21.) Plaintiff has recently discovered tremendous waste of Trust assets and due to Defendant’s failure to timely obtain the records, the value of Plaintiff’s interest in the Trust and subtrusts has been significantly reduced. (See FAC at ¶ 21.)

Plaintiff filed this action on August 19, 2020. On May 26, 2022, Plaintiff filed the FAC against Defendant, alleging causes of action for (1) legal malpractice; and (2) breach of fiduciary duty. Defendant filed a Motion for Summary Judgment or in the alternative Motion for Summary Adjudication (“MSJ/MSA”) on March 20, 2025. On May 22, 2025, Plaintiff filed her declaration and Response to Defendant’s Separate Statement of Undisputed Material in support of her opposition to Defendant’s MSJ/MSA. However, no Memorandum of Points

and Authorities, Request for Judicial Notice, or Exhibits have been filed in support of Plaintiff's opposition. Defendant filed his Reply on May 30, 2025.

Preliminary Matters.

Pursuant to Evidence Code sections 451, 452, and 453, Defendant requests judicial notice of the following documents filed in the Santa Clara County Superior Court action styled *In the Matter of Conservatorship of the Person and Estate of Lorraine Korpontinos*, Case No. 1-14-PR-174368:

- **Exhibit 1:** The Register of Actions
- **Exhibit 3:** Petition for Appointment of Conservator of the Person and Estate of Lorraine Korpontinos filed on April 14, 2014
- **Exhibit 4:** Order After Hearing on Petition for Appointment of Temporary Conservator dated June 4, 2014
- **Exhibit 6:** Second Report of Court-Appointed Attorney Re: Petition for General Conservatorship filed on November 21, 2014
- **Exhibit 7:** Reporter's Transcript of Proceedings before the Honorable Aaron Perskey, Judge held on November 25, 2014
- **Exhibit 8:** Order After Hearing on Petition for Appointment of General Conservator filed on November 25, 2014
- **Exhibit 10:** Andrew Korpontino's Objections to Petition for Substituted Judgment to Modify Conservatee's Estate Plan and Engage in Certain Tax-Efficient Wealth Strategies filed on February 5, 2016
- **Exhibit 11:** John I. Kessler's Post-Hearing Reply Brief to Objections and Amendment to Objections to Petition for Substituted Judgment to Modify Conservatee's Estate Plan and Engage in Certain Tax-Efficient Wealth Strategies filed on March 4, 2016
- **Exhibit 12:** Court-Appointed Post-Hearing Reply to Objections to Petition for Substituted Judgment filed on March 4, 2016
- **Exhibit 13:** Order for Substituted Judgment to Modify Conservatee's Estate Plan and Engage in Certain Tax-Efficient Wealth Strategies filed on March 15, 2016
- **Exhibit 33:** Order Appointing Temporary Conservator on March 15, 2016
- **Exhibit 14:** Beneficiary Stephanie Chapa's Verified Response to Andrew Korpontinos' Objections, Amended Objections, and Proposed Alternative Estate Plan verified on May 4, 2016
- **Exhibit 16:** California State Bar Attorney Profile of Juliette Diem Nguyen, State Bar No. 209167
- **Exhibit 27:** Substitution of Attorney-Civil dated August 19, 2019

Defendant also requests judicial notice of the following documents filed in the Santa Clara County Superior Court action styled *In the matter of Korpontinos 1988 Revocable Trust*, Case No. 1-14-PR-175611:

- **Exhibit 9:** Notice of Entry of Order in Conservatorship Proceeding Requiring Separate Trust Filing filed on November 25, 2014
- **Exhibit 15:** John I. Kessler's Reply to Objections to Petition for Instructions dated August 20, 2019

- **Exhibit 28:** Substitution of Attorney-Civil dated August 19, 2019, filed in Santa Clara County Superior Court

A court may take judicial notice of state court records. (See Cal. Evid. Code § 452(d).) A court may also take judicial notice of a court reporter's transcript. (See *In re Pipinos* (1982) 33 Cal.3d 189, 204 [California Supreme Court took judicial notice of transcript of sentencing hearing under Section 452 (d)]; *Miller v. Superior Court* (2002) 101 Cal.App.4th 728, 734 n. 2 [court of appeals took judicial notice of superior court files and reporter's transcript under Sections 452(d) and 459].) The subject documents are court records which are expressly subject to judicial notice under Evidence Code section 452, subdivision (d). Therefore, the Court GRANTS Defendant's Request for Judicial Notice.

Applicable law.

The pleadings limit the issues presented for summary judgment or adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 ["the pleadings determine the scope of relevant issues on a summary judgment motion."].)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an "issue of duty." (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass'n* (2010) 189 Cal.App.4th 947, 975 ["If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered."]; *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.) Summary adjudication of general "issues" or of facts is not permitted. (See *Raghavan v. The Boeing Company* (2005) 133 Cal.App.4th 1120, 1136.)

"A defendant seeking summary judgment must show that at least one element of the plaintiff's cause of action cannot be established, or that there is a complete defense to the cause of action. ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue." (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted; emphasis added.) "The 'tried and true' way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff's claim." (Weil et al., Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2007) ¶ 10:241, p.10-91, citing *Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 334; emphasis original.) "The moving party's declarations and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff's claim 'in order to avoid unjustly depriving the plaintiff of a trial.'" (*Id.* at § 10:241.20, p.10-91, citing *Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107.)

"Another way for a defendant to obtain summary judgment is to 'show' that an essential element of plaintiff's claim cannot be established. Defendant does so by presenting

evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion.) Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.* at ¶ 10:242, p.10-92, citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.)

Defendant’s Motion for Summary Judgment or in the alternative Motion for Summary Adjudication is GRANTED.

Defendant moves for summary adjudication as to both the first cause of action for legal malpractice and second cause of action for breach of fiduciary duty. Defendant argues the allegations with respect to both causes of action fail for the same reasons. (Notice of MSJ/MSA at p. 3:19-25.) Defendant primarily challenges Plaintiff’s ability to prove the essential element of causation as to each of these claims. (MSJ/MSA at pp. 17:26-19:14.)

According to Defendant, the undisputed material facts establish that Defendant represented Plaintiff at the time the trust amendment was approved by the Court on November 25, 2014. Defendant also argues even if he could have objected, it is speculative as to whether this Court would have allowed the amendments to proceed. It is further undisputed that Plaintiff was not owed any trust accounting as a contingent beneficiary and was informed of the time limitations to petition this Court upon obtaining an accounting. Finally, there is no evidence supporting Plaintiff’s claim that Defendant’s failure to disclose his prior relationship with Kessler proximately caused her any damage. (Notice of MSJ/MSA at p. 3:2-16.)

“In a legal malpractice action arising from a civil proceeding, the elements are (1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney’s negligence.” (*Coscia v. McKenna & Cuneo* (2001) 25 Cal.4th 1194, 1199.)

As a general matter, breach of fiduciary duty is a tort distinct from professional negligence. (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.) The elements of a cause of action for breach of fiduciary duty are: (1) the existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach. (*Pierce v. Lyman* (1991) 1 Cal.App.4th 1093, 1101.)

In support of the assertion that Defendant did not represent Plaintiff on or about November 25, 2014, when the offending trust amendment was approved by this Court, Defendant submits the reporter’s transcript wherein Plaintiff appeared in pro per. (Request for Judicial Notice [“RJN”], Exhibit 7: Nov. 25, 2014 Reporter’s Transcript.) This is also confirmed by the Declaration of Juliette Nguyen (“Attorney Nguyen”), the Court Appointed Attorney who was present at the November 25, 2014 hearing and confirmed that Defendant was not at the hearing. (Declaration of Juliette Nguyen at ¶ 9.)

To the extent Plaintiff challenges Lorraine’s testamentary capacity in making amendments to her trust, Defendant relies on various records wherein the Court rejected placing Lorraine under conservatorship. (See, e.g., RJN, Exhibit 8: Order After Hearing on Petition for Appointment of General Conservator filed on Nov. 25, 2014.) Defendant argues

this is consistent with the presumption of capacity set forth under Probate Code section 810 providing that “there shall exist a rebuttable presumption affecting the burden of proof that all persons have the capacity to make decisions and to be responsible for their acts or decisions.” (Prob. Code § 810, subd. (a).)

Additionally, Defendant maintains even if Lorraine demonstrated signs of dementia, “[a] person who has a mental or physical disorder may still be capable of contracting, conveying, marrying, making medical decisions, executing wills or trusts, and performing other actions.” (*Id.*, subd. (b).) Defendant argues there is no evidence Lorraine suddenly lacked testamentary capacity by the time the offending trust amendment was granted by the Court based on the observations made by Attorney Nguyen. (Reply at pp. 7:21-8:15.) Moreover, there is no evidence Defendant could have objected to the amendments on the grounds of Lorraine’s testimony incapacity.

The court records further demonstrate that the Court closely scrutinized the trust amendments including Andrew’s efforts to contest the further amendment to the trust, which were rejected, as well as the non-contest clause that Lorraine made clear to include in an earlier version of the trust to prevent a fight over her estate plan. Finally, the reporter’s transcript from November 25, 2014 makes clear that Plaintiff specifically represented that she was not challenging her mother’s estate plan. (RJN, Exhibit 7: Nov. 25, 2014 Reporter’s Transcript.)

Defendant argues there are no damages and Plaintiff is not entitled to an accounting because it is undisputed that Lorraine is alive and the trust is still revocable. “Until the trust becomes irrevocable, section 15800 limits the rights of beneficiaries to petition for an accounting . . . [p]roperty transferred into a revocable inter vivos trust is considered the property of the settlor for the settlor’s lifetime, and thus the beneficiaries’ interest in that property is merely potential and can evaporate in a moment at the whim of the settlor.” (*Babbit v. Superior Court* (2016) 246 Cal.App.4th 1135, 1143 [internal citations and quotations omitted].)

Defendant’s evidence primarily consists of records subject to judicial notice. Based on the Court’s review of these documents, both of Plaintiff’s claims fail for two reasons. First, the evidence establishes that it is undisputed that Defendant did not represent Plaintiff on November 25, 2014, and that she appeared *in pro per* and declined to object to her mother’s estate plan. (RJN, Exhibit 7: Nov. 25, 2014 Reporter’s Transcript.) Second, even if Defendant were representing her, the notion that any objection to Lorraine’s estate plan would have resulted in a more favorable outcome for Plaintiff is entirely speculative. “[P]roof of causation cannot be based upon speculation and conjecture, and [] evidence establishing a mere possibility of causation is insufficient to survive summary judgment.” (*Ambriz v. Kelegian* (2007) 146 Cal.App.4th 1519, 1537 [discussing *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 484].)

Here, Defendant has met his burden of proving there are no triable issues of fact. The burden now shifts to Plaintiff to show a triable issue of fact exists as to one or more elements of her claims. However, Plaintiff has failed to meet her burden here. Although Plaintiff submits her declaration in support of her Opposition and Response to Defendant’s Separate Statement of Undisputed Material Facts, she has not submitted a Memorandum of Points and Authorities, Request for Judicial Notice, or any other evidence in support of her Opposition. In her declaration, Plaintiff maintains Defendant was engaged as her counsel on November 25,

2014 even though there was no retainer agreement or payment for services. (Declaration of Stephanie Chapa at pp. 10:25-13:25.) Plaintiff also attempts to challenge Lorraine's testamentary capacity at the time. (*Id.* at pp. 3:25-6:8.) However, Plaintiff submits no evidence to substantiate these assertions even though she refers to certain exhibits throughout her declaration.

Plaintiff fails to offer any argument opposing Defendant's motion, instead only filing a separate statement and a declaration. The failure to timely file an opposition is a basis for the Court to grant the motion (see Code Civ. Proc 437c, subd. (b)(2)), as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D. I. Chadbourne, Inc. v. Super. Ct. (Smith)* (1964) 60 Cal.2d 723, 728, fn.4; see also Cal. Rule of Court 8.54, subd. (c) (appellate rule stating that "[a] failure to oppose a motion may be deemed a consent to the granting of the motion").) Accordingly, as Plaintiff has not offered any argument in opposition, Plaintiff fails to demonstrate the existence of a triable issue of material fact and the Motion for Summary Judgment or in the alternative Motion for Summary Adjudication is GRANTED.

The Court will prepare the Order.

- oo0oo -

Calendar Line 6

- oo0oo -

Calendar Line 7

- oo0oo -

Calendar Line 8

- oo0oo -

Calendar Line 9

- oo0oo -

Calendar Line 10

- 00000 -

Calendar Line 11

- 00000 -

Calendar Line 12

- 00000 -

Calendar Line 13

- 00000 -

Calendar Line 14

- 00000 -

Calendar Line 15

- 00000 -

Calendar Line 16

- 00000 -

Calendar Line 17

- 00000 -

Calendar Line 18

- 0000 -

Calendar Line 19

- 0000 -

Calendar Line 20

- 0000 -

- 0000 -